

9:00 A.M.

Calendar Lines # 1

Case Name American Express National Bank vs Anil Francis

Case No. 23CV426343

Motion for Entry of Judgment

I. BACKGROUND

This collections case stems from a non-payment of a credit card account. On November 17, 2023, Plaintiff American Express National Bank filed a Complaint against Defendant Anil Francis for the outstanding debt and alleged damages in the amount of \$33,200.07.

On April 2, 2024, the parties filed a Notice of Settlement and Stipulation for Entry of Judgment Pending Performance pursuant to Code of Civil Procedure section 664.6. (Declaration of Ren, p. 2; Exhibit A). Defendant Francis signed the agreement on January 1, 2024 and the plaintiff signed the agreement on April 1, 2024. (*Id.*) The settlement agreement set forth a payment plan for a total amount of \$24,120.00 that was to be paid by December 11, 2025. (*Id.*) Defendant agreed to monthly payments starting of \$1,005.00 that was to be paid on or before January 11, 2024 and continuing thereafter through December 11, 2025. (*Id.*) The parties stipulated that in the event that the defendant failed to make the scheduled payments, the defendant would be in default. (*Id.*) The agreement expressly stated that the plaintiff could seek a motion or ex parte application to enforce the agreement for the balance and costs, and less payments made. (Exhibit A).

After the settlement agreement was executed, Defendant Francis started making scheduled payments. However, Defendant Francis failed to make payments for the month of July 11, 2024 and each month thereafter. (Declaration of Ren, p. 2). The last payment received was on June 11, 2024. (*Id.*)

On September 23, 2025, Plaintiff filed this motion for entry of judgment. The motion was accompanied by a proof of service indicating mail service to the plaintiff. Plaintiff acknowledges credit in the amount of \$7,083.84. Defendant seeks \$569.22 in costs for seeking this entry of judgment. (Memorandum of Costs).

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on June 10 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court carefully reviewed the following: Plaintiff's notice of motion (totaling 3 pages); memorandum of points and authorities (totaling 3 pages); Declaration of Zhen Ren in support of plaintiff's motion and attached Exhibit A (totaling 8 pages); memorandum of cost (totaling 2 pages); proof of service; and the pleadings.

II. LEGAL STANDARD

Code of Civil Procedure section 664.6 provides in relevant part:

“(a) If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

(b) For purposes of this section, a writing is signed by a party if it is signed by any of the following:

(1) The party.

(2) An attorney who represents the party.

(3) If an insurer is defending and indemnifying a party to the action, an agent who is authorized in writing by the insurer to sign on the party's behalf. This paragraph does not apply if the party whom the insurer is defending would be liable under the terms of the settlement for any amount above the policy limits."

Strict compliance with the statutory requirements is necessary before a court can enforce a settlement agreement under this statute. (*Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc.* (2002) 103 Cal.App.4th 30, 37). To enforce a written settlement agreement under Code of Civil Procedure section 664.6, the following three elements must be met: (1) the parties must have come to a meeting of the minds on all material points; (2) there must be a writing that contains the material terms of the agreement; and (3) the writing must be signed by the parties. (*Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 797-98).

Enforcement under section 664.6 "require[s] the signatures of the parties seeking to enforce the agreement under [Code of Civil Procedure] section 664.6 and against whom the agreement is sought to be enforced." (*J.B.B. Investment Partners, Ltd. v. Fair* (2014) 232 Cal.App.4th 974, 985). Section 664.6's "requirement of a 'writing signed by the parties' must be read to apply to all parties bringing the section 664.6 motion and against whom the motion is directed." (*Harris v. Rudin, Richman & Appel* (1999) 74 Cal.App.4th 299, 306; see *Sully-Miller Contracting Co. v. Gledson/Cashman Const., Inc.* (2002) 103 Cal.App.4th 30, 35-37 ["A written settlement agreement is not enforceable under section 664.6 unless it is signed by all of the parties to the agreement, not merely the parties against whom the agreement is sought to be enforced."]). "A procedure in which a settlement is evidenced by one writing signed by both sides minimizes the possibility of ... dispute[s] and legitimizes the summary nature of the section 664.6 procedure." (*Robertson v. Chen* (1996) 44 Cal.App.4th 1290, 1293).

III. ANALYSIS

Here, all requirements to enforce the settlement have been met. There was a meeting of the minds on all material terms, including the amount, scope and payment terms, including a monthly payment scheduled of the settlement. The parties signed and filed the stipulation containing all of the material terms. The stipulation and agreement is signed by all parties. Thus, the Court grants the motion to enforce and will enter a judgment amount of \$26,685.45 against Defendant Francis. The judgment amount is calculated as follows: total amount \$33,200.07 less the credited sum of \$7,083.84 plus \$569.22 in costs.

The motion is unopposed. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

IV. CONCLUSION

Based on the foregoing, and the motion being unopposed, the Court GRANTS the motion to enter a judgment under Code of Civil Procedure section 664.6. The judgment amount of \$26,685.45 is entered against Defendant Francis.

The Court will prepare the formal Order.

Calendar Lines # 2
Case Name Brittany Dowdy vs Avtar Judge et al.
Case No. 24CV445359
Motion to Strike Before the court is defendants’ motion to strike portions of plaintiff’s complaint. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. I. <u>BACKGROUND</u> On or about August 19, 2022, plaintiff Brittany Dowdy (“Plaintiff”) checked into defendant Quality Inn & Suites South San Jose/ Morgan Hill (“Quality Inn”) located at 16525 Condit Road in Morgan Hill (“Subject Hotel”). (Complaint, ¶15). On or about August 20, 2022, Plaintiff awoke with severe itching and discovered numerous bed bug bites across her body. (Complaint, ¶16). Plaintiff inspected her bed and discovered specks of blood on the mattress. (Complaint, ¶17). Plaintiff reported her injuries to the Subject Hotel management, but the Subject Hotel manager was dismissive. (Complaint, ¶19). On August 20, 2022, Plaintiff checked out of the Subject Hotel. (Complaint, ¶18). On or about August 29, 2022, Plaintiff sought medical care and was diagnosed with infected bedbug bites. (Complaint, ¶20). Plaintiff has physical and emotional scars as a result of the bedbug bites. (Complaint, ¶21). Defendants deliberately and recklessly chose not to inspect or otherwise ensure Plaintiff’s room was free of bedbugs immediately before Plaintiff’s stay at the Subject Hotel, willfully disregarding knowledge of a prior bedbug infestation. (Complaint, ¶23). Defendants failed to eradicate a prior bedbug infestation of Plaintiff’s room despite knowledge of a prior infestation in that room. (Complaint, ¶¶24 – 25). On August 16, 2024, Plaintiff filed a complaint against defendants Choice Hotels International, Inc. (“CHI”); Quality Inn; Sunbake, LLC (“Sunbake”), and Avtar Judge (“Judge”) asserting causes of action for: (1) Battery (2) Negligence (3) Intentional Infliction of Emotional Distress (4) Fraudulent Concealment (5) Private Nuisance (6) Public Nuisance (7) Breach of Contract On June 10, 2025, defendants CHI, Quality Inn, Sunbake, and Judge (“Moving Defendants”) filed the motion now before the court, a motion to strike the request for attorney’s fees and punitive damage allegations from Plaintiff’s Complaint. II. <u>LEGAL STANDARD</u> A. PROCEDURAL REQUIREMENTS Code of Civil Procedure section 435.5(a) requires that before filing a motion to strike, the moving party shall meet and confer in person or by telephone with the party who has filed the pleading subject to the motion to strike and file a declaration detailing their meet and confer efforts. However, an insufficient meet and confer process is not grounds to grant or deny a motion to strike. (Code Civ. Proc., § 435.5(a)(4)). Code of Civil Procedure section 435(b) sets forth that a party may bring a motion to strike within the time allowed to respond to a pleading. (See also, Cal. Rule of Court, rule 3.1322(b)). A motion to strike all or part of an answer